

		Given the above, the Court finds that Defendant is the prevailing party and that the attorney fees sought are reasonable under the circumstances and pursuant to a lodestar analysis. The Motion for Attorney Fees and Costs is GRANTED in the amount requested. The Court finds that Defendant Antigua Owner's Association of Monarch Beach is entitled to \$5,602.50 in attorney fees plus \$120.00 in costs, for a total of \$5,722.50. Moving Party to give notice.
7.	30-2022-01246328 Aznavian vs. Castle Mortgage Corporation	1. Motion for Attorney Fees Plaintiff Camillia Aznavian moves the Court for an Order for Attorneys' Fees. This motion is DENIED. A plaintiff who obtains a default judgment by written declaration, as here, may <i>not</i> seek fees by means of a postjudgment motion. Plaintiff is entitled only to those fees <i>included in the default judgment</i>. [<i>Garcia v. Politis</i> (2011) 192 CA4th 1474, 1479.] Here, no attorney's fees were included in the Default Judgment; and thus, none can be recovered. Clerk to give notice.
8.	30-2022-01276823 Bethesda University vs. Kim	1. Motion for Summary Judgment and/or Adjudication Plaintiff Bethesda University ("Plaintiff" or "Bethesda") moves for summary judgment or summary adjudication against Defendants Pan-Ho Kim; Kyung Moon Kim; Young Hoon Lee; Sun Wook Hwang; Seung Hyun Moon; Samuel Minje Cho; Chun Soo Kim; Ji Yeon Kim; Esther Cho; Ho Yun Jun; Yong Woo Choi; Han Yeh Chang; Yong Jun Kim; Yu Chul Chin; Byeong Cho Yang; and Seunghwa Ji ("Defendants") on the first cause of action for fraudulent deceit, second cause of action for breach of fiduciary duty, and of the fact that Plaintiff is entitled to recover at least \$4,310,249.21 in damages for the period June 1, 2022 through May 31, 2023 on the first and second causes of action. Plaintiff has not sought summary adjudication or summary judgment with regard to the third cause of action for declaratory relief. Thus, complete summary judgment cannot be granted and the motion to the extent it seeks summary judgment is DENIED. A plaintiff moving for summary adjudication bears the initial burden of proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (<i>Id.</i>, § 437c(f)(1).) <u>Fraudulent Deceit</u> The "elements of a cause of action for fraud are: (1) a misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages." (<i>Cadlo v. Owens-Illinois, Inc.</i> (2005) 125 Cal.App.4th 513, 519.) Plaintiff's motion is supported by the Declaration of Seung Je Cho, its former President. Mr. Cho asserts that during the period of June 1, 2022 through May 31, 2023, Defendants claimed to be Bethesda's governing board and officers and acted as though they controlled Bethesda's